

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MICHAEL SHAO,

Petitioner

VS.

XIU HONG LI,

Respondent

) Case Number: FDI-25-801214

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER LEAVE OF COURT TO FILE SECOND AMENDED PETITION FOR
DISSOLUTION OF MARRIAGE; REQUEST FOR ORDER RE: SPOUSAL SUPPORT, ATTORNEY
FEES, AND RESTAURANT PROCEEDS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

I. Petitioner's Request for Order filed 1/5/26

A. Procedural History

- 1) The parties are Petitioner Michael Shao and Respondent Xiu Hong Li.
- 2) On 4/10/25, Petitioner filed a Petition for Dissolution.
- 3) On 5/5/25, Respondent filed a Response and Request for Dissolution, which indicates the date of marriage is 1/17/03 and date of separation is 4/7/25 for a marriage of 22 years and 3 months.
- 4) On 5/9/25, Petitioner filed an amended Petition for Dissolution, which indicates the date of marriage is 1/17/03 and date of separation is 4/7/24 for a marriage of 21 years and 3 months.
- 5) On 1/5/26, Petitioner filed a Request for Order and supportive declaration seeking leave of Court to file a second amended petition to correct mistakes of fact regarding the date of separation and listings of assets and debts and update the sections regarding spousal support and attorney's fees. Petitioner asserts he was not represented by counsel when the petition was filed.

- 6) On 1/5/26, Petitioner filed a Memorandum of Points and Authorities.
- 7) On 1/5/26, Petitioner filed a supportive attorney declaration
- 8) On 4/22/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for Order asserting that she would be prejudiced if Petitioner were permitted to file a second amended petition.

B. Findings and Order

- 1) The Court sees no prejudice to Respondent in granting Petitioner's request for leave of Court to file a second amended petition to correct mistakes of fact regarding the date of separation and listings of assets and debts and update the sections regarding spousal support and attorney's fees.
- 2) Accordingly, and in the furtherance of justice, Petitioner's request to file a second amended petition is hereby granted.

II. Respondent's Request for Order filed 2/10/26

A. Procedural History

- 1) On 2/10/26, Respondent filed a Request for Order seeking guideline temporary spousal support, \$15,000 in attorney's fees and costs, and an order for Petitioner to pay Respondent half the net proceeds from five allegedly community property restaurants currently in Petitioner's control. Respondent claims that it is undisputed that the five restaurants were opened during marriage with community funds. Respondent asserts that according to Petitioner's 2024 tax return (see Exhibit A), Petitioner earned \$552,831 in annual income and according to a jointly filed 2023 tax return (see Exhibit B), Petitioner earned \$714,937 in annual income. Respondent attaches a proposed XSpouse calculation (see Exhibit C). Respondent states that she is additionally requesting the Court order Petitioner to pay Respondent 50% of restaurant proceeds for which she has limited information though asserts she is entitled to half. Respondent believes Petitioner's share of the profit from the restaurants in 2024 was \$330,251 and in 2023 was \$461,778. Respondent requests \$15,000 in attorney's fees and costs under Family Code section 2020 asserting that Petitioner's monthly earnings is \$46,049 while Respondent's is \$2,715. The matter was set for hearing on 5/5/26 and was continued to 5/7/26 on the Court's own motion.
- 2) On 2/10/26, Respondent filed an Income and Expense Declaration.

- 3) On 2/10/26, Respondent filed an attorney declaration substantiating her request for \$15,000 in attorney's fees and costs.
- 4) On 4/22/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for Order. Petitioner asserts that division of property or debts is a trial issue therefore Respondent's request for a Court order that Petitioner pay Respondent half the net proceeds from the five restaurants should be denied pending trial. Petitioner asserts that Respondent is self-supporting, and he is nearing retirement age, so should not be ordered to pay temporary spousal support. Petitioner asserts that if the net proceeds from the restaurants are divided, then the proceeds from Respondent's daycare should also be divided.
- 5) On 4/22/26, Respondent filed an Income and Expense Declaration.
- 6) On 4/29/26, Respondent filed a Reply Declaration reiterating her request and providing clarification regarding her position on the parties' respective financial situations.

B. Findings and Order

- 1) Petitioner's request for guideline temporary spousal support is GRANTED effective 2/10/26.
- 2) In accordance with the XSpouse report attached hereto and incorporated herein, Petitioner shall pay to Respondent \$1,784 per month in guideline temporary spousal support. Petitioner shall pay this amount to Respondent no later than the 1st of every month.
- 3) Petitioner owes Respondent \$6,498.85 in temporary guideline spousal support arrears for the period of 2/10/26 – 5/30/26 (\$1,146.85 for February + \$5,352 (\$1,784 x 3) for March – May). Petitioner shall pay an additional \$500 per month until this balance is paid in full.
- 4) The XSpouse is based on the following findings:
 - a. Per Petitioner's Income and Expense Declaration filed 4/22/26, Petitioner earns \$11,000 in average monthly income.
 - b. Per Respondent's Income and Expense Declaration filed 4/29/26, Respondent:
 - i. Receives \$1,112 in average monthly social security retirement;
 - ii. Accrues \$781 in average monthly dividends;
 - iii. Earns \$1,000 in average monthly self-employment income; and
 - iv. Pays \$203 in average monthly health insurance premiums.

1 5) Respondent's request for \$15,000 in Family Code section 2030 attorney's fees is GRANTED.

2 The attached XSpouse shows that, after temporary guideline spousal support is paid, Petitioner
3 will have 57% of the parties' combined net spendable income and Respondent will have 43% of
4 the parties' combined net spendable income. Petitioner states that he has \$700,000 in cash savings
5 while Respondent states she has \$500,000 in cash savings. Based on the forgoing, the Court finds
6 an award of attorney's fees and costs is appropriate here because there is a demonstrated disparity
7 between the parties in access to funds to retain or maintain counsel and in the ability to pay for
8 legal representation. The Court finds Petitioner has or is reasonably likely to have the ability to
9 pay for legal representation for both parties and \$15,000 in attorney's fees and costs are
10 reasonable and necessary. Petitioner shall pay this balance in full by 6/7/26.

11 6) The Court reserves jurisdiction over Respondent's request for a Court order that Petitioner pay
12 Respondent half the net proceeds from the five restaurants for trial.

13 7) Counsel for Respondent shall prepare the Findings and Order After Hearing.

14 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
15 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
16 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
17 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
18 proposed order after hearing directly to the court. Failure to submit the order after hearing within
19 10 days may allow the other party to prepare a proposed order and submit it to the court in
20 accordance with CA Rules of Court, Rule 5.125(d).

2026		Xspouse 2026-1-CA				Monthly Figures			Monthly Figures		
		Husband	Wife							Cash Flow	
Fixed Shares		0	0			2026				Guideline	Proposed
Number of children	Percent	0.00%	0.00%					Combined net spendable		10214	10214
time with NCP	Filing status	SINGLE	HH/MLA					Percent change		0%	0%
Number of exemptions		1	1								
Wages and salary		11000	0								
Self employed income		0	1000								
Other taxable income		0	1893								
TANF CS received		0	0								
Other nontaxable income		0	0								
New spouse income		0	0								
Employee 401-k contribution		0	0								
Adjustments to income		0	0								
SS paid prev marriage		0	0								
CS paid prev marriage		0	0								
Health insurance		0	203								
Other medical expenses		0	0								
Property tax expenses		0	0								
Ded interest expense		0	0								
Contribution deduction		0	0								
Misc tax deductions		0	0								
Qualified business income deduction		0	0								
Required union dues		0	0								
Mandatory retirement		0	0								
Hardship deduction		0	0								
Other GDL deductions		0	0								
Child care expenses		0	0								

Husband pays Guideline SS, Proposed SS

FC 4055 checking: **ON**

Per Child Information

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		0 - 0	0	0	0 Husband	0 Husband	0 Husband